

23STCV12697 23STCV12697

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Case Number: 23STCV12697 Hearing Date: August 14, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/14/2026

CASE NUMBER: 23STCV12697

CASE NAME: CHRISTINE ROBLES, et al. vs MERCURY INSURANCE COMPANY, ...

MOVING PARTY: Defendant California Automobile

Insurance Company

OPPOSING PARTY: Plaintiffs Christine Robles and Oscar

Robles

PROCEEDING: Motion for summary judgment

RULING SUMMARY: California Automobile Insurance

Company's Motion for Summary Judgment or alternatively Summary Adjudication is denied.

Background

On June

05, 2023, Plaintiffs Chritine Robles ("Christine")^[1]

and Oscar Robles ("Oscar" and collectively "Plaintiffs") filed a Complaint

against defendants Mercury Insurance Company ("Mercury"), A to Z Restoration

and Packing Inc. ("A to Z" and, with Mercury, "Defendants"), and Does 1 through

50.

On July

11, 2023, Plaintiffs amended the fictitious name of Doe 1 to SoCal Restoration Pros ("SoCal Pros").

On

August 14, 2023, Plaintiffs filed their First Amended Complaint ("FAC"). The FAC added California Automobile Insurance Company ("CAIC").

On

September 25, 2023, Plaintiffs dismissed Mercury from the Complaint without prejudice.

On

October 10, 2023, California Automobile Insurance Company ("CAIC") filed an Answer to the FAC and a Cross-Complaint against Plaintiffs, alleging one cause of action for Unjust Enrichment.

On

November 13, 2023, Plaintiffs filed their Answer to CAIC's Cross-Complaint.

On May 3,

2024, Plaintiff dismissed A to Z from the Complaint without prejudice.

The

operative Complaint is the Second Amended Complaint ("SAC"), filed on June 25, 2026, alleging three causes of action for (1) Breach of Contract against Mercury and CAIC; (2) Breach of Implied Covenant of Good Faith and Fair Dealing against Mercury and CAIC; and (3) Negligence against A to Z.

Plaintiffs

allege that in or about May 26, 2021, Plaintiffs owned the property located at 13826 Cohasset Street, Van Nuys, CA 91405 (the "Property"), Plaintiffs had a Homeowners Policy with Mercury and CAIC, and the Property suffered a significant loss because of the sudden, and accidental leak of water due to burst of hot water supply line; that Plaintiffs stored their personal property at A to Z's storage premises after the alleged leak, and, on or about August 13, 2021, while their personal property was there, A to Z's premises caught fire and Plaintiffs' belongings burned; and that Plaintiffs filed two insurance claims at the appropriate times for each incident, the claims were denied by

Mercury and CAIC, and Mercury and CAIC failed to conduct reasonable investigations, leading to damages.

On

September 2, 2025, CAIC filed its Answer to the SAC, and on January 30, 2026, CAIC filed this Motion for Summary Judgment, or in the alternative, Summary Adjudication.

On July

24, 2026, Plaintiffs filed their Opposition.

On August 03, 2026, CAIC filed its Reply.

LEGAL

STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co., (2001) 25 Cal.4th 826, 843.) Section 437c(c) of the Code of Civil Procedure “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67 [citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382].)

“

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code Civ. Proc. §437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the

evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc., (2006) 39 Cal.4th 384, 389.)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

DISCUSSION

The claims directed at CAIC are the First Cause of Action (Breach of Contract) and the Second Cause of Action (Breach of Implied Covenant of Good Faith and Fair Dealing).

A.
First Cause of Action (Breach of Contract)

CAIC argues that the water loss and fire loss are not covered under their policy as: (1) the subject hot water supply line was inspected by Jeremy Britton (“Britton”) at Sidhi Consultants, on June 7 and June 9, 2021, at the request of CAIC and the supply line and inner liner were determined to have been damaged by an external source with a sharp edge, severing the line (UMF Nos. 13, 16, 17); (2) the CAIC policy at hand excludes intentional loss (UMG Nos. 86, 94); and (3) Plaintiffs have not established that their personal property was stored at A to Z’s storage as A to Z provided photos and a handwritten inventory after the leak that did not identify the storage location of the items (UMF No. 34), the contract between A to Z and Plaintiffs was burned in the fire (UMF No. 36), the A to Z Packing Xactimate estimate was prepared by Jake Corbin (“Corbin”) of SoCal Pros and Corbin was not involved with storage of the personal property (UMF Nos. 42, 96), and the owner of A to Z, Mesrop Akopyan (“Akopyan”), stated that he had no records evidencing that the plaintiffs’ property was stored at the burned warehouse location (UMF Nos. 45, 56, 82). CAIC further argues that, as related to the fire, insurance is limited by the “Property Removed” provision,

which protects removed property for no more than 30 days and, here, the fire occurred more than 30 days after the personal property was removed from the insured Property. (UMF Nos. 3 and 102.) CAIC then provides arguments related to Plaintiffs' misrepresenting the events of the water loss and fire loss; Plaintiffs' financial situation; and Christine's mother, Alexis Nassif, having informed Plaintiffs to speak to her rather than Carlos Palencia ("Palencia"), identified by Akopyan as the project manager, from speaking to CAIC.

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

Exhibit 1 to the SAC, incorporated into CAIC's Separate Statement provides the following pertinent information:

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Property Removed [¶] We insure covered property against direct loss from any cause while being removed from a premises endangered by a Peril Insured Against and for no more than 30 days while removed. This coverage does not change the limit of liability that applies to the property being removed. (Exh. 1, p. 10 at No. 5.)

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Water Damage [¶] Water Damage, meaning: [¶]

a. Flood, surface water, ground water, storm surge, waves, wave wash, tidal water, tsunami, seiche, overflow of a body of water, or spray from any of these, whether or not driven by wind; [¶] b. Any water or water-borne material that enters through or backs up through sewers or drains or which overflows or is discharged from a sump, sump pump or related equipment; or [¶] c. Any water or waterborne material located below the surface of the ground, including water or water borne material: (1) Which exerts pressure on, seeps, leaks or flows into: (a) Any part of the dwelling or other structures; (b) The foundation of the dwelling or other structures; (c) Any paved surface located on the "residence premises"; or (d) Any spa, hot tub, or swimming pool. (2) Which causes "earth movement"; or 03000021 H0003 (09/2014) [¶] d. Any overflow, release, migration or discharge of water in any manner from a dam, levee, dike, hurricane barrier or any water or flood control device. Direct loss by fire, explosion or theft resulting from water damage is covered. (Id. at 17-18

at No. 3.)

Intentional Loss [¶] Intentional Loss

means any loss arising out of any act an "insured" commits or conspires to commit with the intent to cause a loss. [¶] In the event of such loss, no "insured" is entitled to coverage, even "insureds" who did not commit or conspire to commit the act causing the loss. [¶] This exclusion does not apply, with respect to loss to covered property caused by fire, to an "insured" who does not commit or conspire to commit any act that results in loss by fire. We cover such "insured" only to the extent of that "insured's" legal interest, but not exceeding the applicable limit of liability. [¶] We may apply reasonable standards of proof to claims for such loss. (Id. at 18 at No. 8.)

Duties After Loss [¶] In case of a loss

to covered property, the following duties must be performed either by you, an "insured" seeking coverage, or a representative of either: [¶] 1. Give prompt notice to us or our agent; [¶] 2. Notify the police in case of loss by theft; [¶] 3. Notify the credit card or electronic fund transfer card or access device company in case of loss as provided for in E.6. Credit Card, Electronic Fund Transfer Card Or Access Device, Forgery And Counterfeit Money under Section I – Property Coverages; [¶] 4. Protect the property from further damage. If repairs to the property are required, you must: a. Make reasonable and necessary repairs to protect the property; and b. Keep an accurate record of repair expenses; [¶] 5. Cooperate with us in the investigation of a claim; [¶] 6. Prepare an inventory of damaged personal property showing the quantity, description, "actual cash value" and amount of loss. Attach all bills, receipts and related documents that justify the figures in the inventory; [¶] 7. As often as we reasonably require: a. Show the damaged property; b. Provide us with records and documents we request and permit us to make copies; and c. Submit to examinations under oath and subscribe the same. We may examine an "insured" separately and apart from the presence of any other "insured". [¶] 8. Send to us, within 60 days after our request, your signed, sworn proof of loss which sets forth, to the best of your knowledge and belief: a. The time and cause of loss; b. The interests of all "insureds" and all others in the property involved and all liens on the property; c. Other insurance which may cover the loss; d. Changes in title or occupancy of the property during the term of the policy; 03000023 H0003 (09/2014) Page 20 of 33 e. Specifications of

damaged “buildings” and detailed repair estimates; f. The inventory of damaged personal property described in 6. above; g. Receipts for additional living expenses incurred and records that support the fair rental value loss; and h. Evidence or affidavit that supports a claim under E.6. Credit Card, Electronic Fund Transfer Card Or Access Device, Forgery And Counterfeit Money under Section I – Property Coverages, stating the amount and cause of loss. (Id. at 19-20 at C.)

Regarding the water damage, the declaration of Vanessa Chavez (“Chavez”) shows that someone named Jerry Wenzel delivered the failed supply line to Sidhi Consultants on June 4, 2021 (Chavez Decl. ¶ 16); Sidhi Consultants provided a report (id. ¶ 25); and a denial based upon that report (id. ¶ 60.)

Sidhi Consultants’ report reads, in pertinent part:

The opinions are:

1. The faucet supply line reportedly leaked and was the cause of the water loss.
2. The strands of the outer protective braided jacket of the supply line were mechanically damaged and severed by an external source; the inner liner of the supply line was also damaged and perforated at the location of the damaged jacket.
3. The perforated liner of the supply line was the source of the reported water loss, 4. The most probable cause of the severed strands and perforated inner liner was contact with a sharp edge, which mechanically sliced the outer strands and inner liner causing the pressure boundary failure and leak.

(Exh. N.)

Thus, CAIC contends, the supply line was intentionally sliced, and coverage does not apply based upon the Intentional Loss section of the policy.

The fire at A to Z occurred on

August 13, 2021 (Chavez Decl. ¶ 63) and was reported to CAIC on September 10, 2021 (id. ¶ 62). The claim regarding the water damage was reported to CAIC by Oscar on May 27, 2021, and the leak was purported to have occurred on May 26, 2021. Sometime between May 2021 and August 2021, Plaintiffs' personal property burned. The Separate Statement details a plethora of communications between the parties pertaining to CAIC's concern that Plaintiff's production of documents was insufficient under the Duties After Loss section of the insurance policy. CAIC also raised issues regarding allegedly inconsistent or untrue statements made by Plaintiffs to CAIC. However, because reasonable minds could differ regarding the materiality of Plaintiffs' statements and sufficiency of documents produced to the CAIC's inquiry, CAIC cannot rely on these facts to sustain its burden on summary adjudication. (Cummings v. Fire Ins. Exch. (1988) 202 Cal.App.3d 1407, 1417 ("materiality is determined by its prospective reasonable relevance to the insurer's inquiry"; materiality can be determined as a matter of law where "reasonable minds could not differ regarding the materiality of plaintiff's misrepresentations"; otherwise question is for the jury).) Moreover, it appears that CAIC found Plaintiffs' production insufficient, not that Plaintiff failed to produce requested items in totality.

Neverthelss, the Property Removed section of the insurance policy shows that by the time of the fire claim, September 10, 2021, Plaintiffs' personal belongings were excluded from coverage as they had been removed from the Property for more than 30 days.

In light of the evidence regarding the damage to the supply line, CAIC meets its burden to negate an essential element of Plaintiffs' breach of contract claim – defendant's breach.

The burden shifts to Plaintiffs.

Plaintiff has provided the declaration of Ramesh Kar, PH.D, P.E. ("Kar"). Kar holds a Bachelor's degree in Metallurgical Engineering from the Indian Institute of Technology, India, as well as masters and Doctoral degrees in Materials Science and Engineering, with a minor in Mechanical Engineering, from the University of California, Berkeley. (Kar Decl. ¶ 4.) Kar is registered as a professional metallurgical engineer in California, is board certified as a forensics examiner, and has been conducting product liability and forensic failure analysis investigations on consumer products and industrial plumbing

hardware since 1978. (Id. ¶¶ 4-5.) Kar, with his expertise, review of the report, and non-destructive testing of the failed product opines that the cause of the failed supply line was that “degradation of the internal polymeric tube was occurring while in service” and “the weakened inner tubing has ballooned and eventually ruptured due to exposure to extreme pressure surges.” (Kar Decl. ¶¶ 9-16.)

Kar’s declaration is sufficient to show that there is a disputed material fact as to whether the supply line was intentionally severed and, as such, whether CAIC breached the contract by failing to cover the loss resulting from the water damage.

Regarding the fire claim, Plaintiffs argue that the Property Removed Clause does not exclude Plaintiff’s claim as it is additional coverage and misinterpreted by CAIC. Specifically, Plaintiffs note that their insurance policy states it covers personal property owned or used by the insured anywhere in the world (Pl.’s SSUMF at No. 72), Mercury and CAIC can authorize property to be removed for more than 30 days (id. at No. 74), and Jerry Wenzel (“Wenze”) authorized storage of Plaintiffs’ personal property off-site for a duration of six months (id. at 75).

The declaration of Trevor Weinberg (“Weinberg”) at Exh. 16 contains the same insurance policy incorporated into the SAC. The citation to page 9 is incorrect, but the Court did find the quote to which Plaintiffs cited:

1. Covered Property

We cover personal property owned or used by an “insured” while it is anywhere in the world. After a loss and at your request, we will cover personal property owned by:

- a. Others while the property is on the part of the “residence premises” occupied by an “insured”; or
- b. A guest or a “residence employee”, while the property is in any residence occupied by an “insured”

(Exh. 16 at p. 6 at C(1).)

The section below at C(2) contains limitations but states, in relevant part: “. . .this limitation does not apply to personal property: [¶] a. Moved from the ‘residence premises’ because the ‘residence premises’ is being repaired, renovated or rebuilt and is not fit to live in or store property in; or [¶] b. In a newly acquired principal residence for 30 days from the time you begin to move the property there. (Id. at C(2).) Roderick Hill (“Hill”), who approved field adjusters’ reserves or made changes to them, expressly stated that Mercury could authorize property to be removed for more than 30 days while a claim was being handled. (Weinberg Decl., Exh. 6 at 32:3-7, 120:10-13.) Wenzel, the insurance adjuster, recommended six months of storage for Plaintiffs’ personal property. (Weinberg Decl. at Exh. 5 at 5:24-25, 43:18-25.)

Thus, there is a question of material fact as to whether Plaintiffs’ personal property at A to Z was approved for storage for a duration of six months and covered by the insurance policy.

For the reasons explained above, CAIC’s Motion for Motion for Summary Adjudication as to the First Cause of Action is denied.

B.
Second Cause of Action (Breach of the Implied Covenant of Good Faith and Fair Dealing)

CAIC’s argument regarding the Second Cause of Action stems from its arguments described above, in other words, that a claim for breach of the covenant of good faith and fair dealing cannot survive where there is no coverage under the policy that Plaintiffs’ allege was breached. CAIC asserts that the ultimate test of whether an alleged withholding of policy benefits constitutes a breach of the implied covenant of good faith and fair dealing is whether the insurer’s conduct was unreasonable, and that its denial of both claims was reasonable. CAIC also argues that, (1) under *Chateau Chamberay Homeowners Ass’n v. Associated Int. Co.* (2001) 90 Cal.App.4th 335 (“*Chateau Chamberay*”), the applicability of the genuine dispute doctrine does not present a triable issue of material fact where the court can determine as a matter of law that a reasonable dispute actually existed and, here, such a dispute was present; and (2) that where, as here, CAIC asserts that it relied on counsel with regard to its determination, the defense bars Plaintiffs’

claims for bad faith (State Farm Mut. Auto Ins. Co. v. Superior Court (1991) 228 Cal.App.3d 721 ("State Farm")(cited by CAIC)).

"A

breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself and it has been held that bad faith implies unfair dealing rather than mistaken judgment." (Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1394.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated ... [T]he only justification for asserting a separate cause of action for breach of the implied covenant is to obtain a tort recovery." (Id. at 1394-1395.) To recover in tort for breach of the implied covenant, the defendant must "have acted unreasonably or without proper cause." (Id. at 1395 [citations and italics omitted].)

Good

faith is generally for the trier of fact to resolve, unless, "from uncontroverted evidence, a reasonable man following the law can draw but one conclusion on the issue." (Davy v. Public National Ins. Co. (1960) 181 Cal.App.2d 387, 400.) Put into the insurance context, "the reasonableness of an insurer's claims-handling conduct is ordinarily a question of fact, [but] becomes a question of law where the evidence is undisputed and only one reasonable inference can be drawn from the evidence.'" (Pinto v. Farmers Ins. Exchange (2021) 61 Cal.App.5th 676, 689.)

The

case CAIC's cited, Chateau Chamberay, states: "We agree with the Dalrymple court's analysis of this issue when it concluded that, as long as there is no dispute as to the underlying facts, it is for the court, not a jury, to decide whether the insurer had 'proper cause.' (Dalrymple v. United Services Auto. Assn., supra, 40 Cal. App. 4th at p. 517.)" (Chateau Chamberay, supra, 90 Cal.App.4th at 350.) Here, as discussed above, there is a dispute as to the underlying facts; and, under Chateau Chamberay, the issue of a breach of the implied covenant of good faith and fair dealing is for the jury to decide.

Regarding

advice of counsel evidence, the Court in *State Farm*, supra, 228 Cal.App.3d at 725, explained:

An insurer may defend itself against allegations of bad faith and malice in claims handling with evidence the insurer relied on the advice of competent counsel. (*Merritt v. Reserve Ins. Co.* (1973) 34 Cal.App.3d 858, 872 [110 Cal.Rptr. 511]; *Davy v. Public National Ins. Co.* (1960) 181 Cal.App.2d 387, 396 [5 Cal.Rptr. 488]; *Fox v. Aced* (1957) 49 Cal.2d 381, 385 [317 P.2d 608]; *Beck v. State Farm Mut. Auto. Ins. Co.* (1976) 54 Cal.App.3d 347, 355-356 [126 Cal.Rptr. 602].) The defense of advice of counsel is offered to show the insurer had “proper cause” for its actions even if the advice it received is ultimately unsound or erroneous. (See Kornblum et al., *Cal. Practice Guide, Bad Faith* (1990) § 10.98, pp. 10-29, 10-30.)

Chavez explicitly references the recommendation by counsel Celia Moutes-Lee (“Moutes-Lee”) of denial of the water damage claim. (Chavez Decl. ¶ 60.) Hill, likewise, references Moutes-Lee’s denial of the water damage claim (Decl. Hill ¶ 8) as well as Moutes-Lee’s denial of the fire claim (*id.* ¶¶ 17-18). Exhibit T is Moutes-Lee’s letter concerning the denial of the water damage claim. (Chavez Decl. ¶ 60, Exh. T.) This letter includes discussion of the fire claim as well.

Thus, CAIC has evidenced that it relied on the advice of competent counsel as discussed in *State Farm*, and has met its initial burden by providing a defense to the claim for breach of the implied covenant of good faith and fair dealing.

The burden shifts to Plaintiffs.

Plaintiffs argue that Moutes-Lee actually instructed CAIC conduct a further examination under oath (“EUO”) of Oscar to present him the Sidhi report and let him explain the discrepancies before any denial, and CAIC did not do so. (Pl.’s UMF No. 81.) Plaintiffs contend that CAIC cannot rely on the advice of counsel defense where CAIC did not conduct a full investigation as advised by counsel. Plaintiffs cite for support *Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306 (“Mock”), *Wilson v. 21st Century Ins. Co.*

(2007) 42 Cal.4th 713 ("Wilson"), *Melorich Builders, Inc. v. Superior Court* (1984) 160 Cal.App.3d 931 ("Melorich"), and *George F. Hillenbrand, Inc. v. Ins. Co. of North America* (2002) 104 Cal.App.4th 784 ("Hillenbrand").

Exhibit

14 is Moutes-Lee's letter concerning both claims. It appears that Moutes-Lee believed there would be a resumption of the relevant EUOs. (See Exh. 14 at p. 23.) Further, the letter states in pertinent part:

1.

"However, in order to rule out any other potential explanation for the damage, we recommend that CAIC present the insureds with the evidence that the hot water supply line was damaged by an external mechanical source and provide them with an opportunity to explain how that could have occurred absent an intentional act." (Exh. 14 at p. 19.)

2.

"Should we resume one or both insureds' EUOs to present evidence of the severed supply line, we can present these discrepancies to the insureds and ask them to explain them." (Id. at 21-22.)

The letter does not explicitly state that CAIC must conduct further EUOs, but recommends that CAIC do so for other potential explanations.

The cases Plaintiffs cited, *Mock*, *Wilson*, *Melorich*, and *Hillenbrand*, support their position. In *Melorich*, *supra*, 160 Cal.App.3d at 937, the Court stated: "We hold, as a matter of law, it is a complete defense to a claim of extreme and outrageous conduct when the evidence shows (1) the defendant acted on the opinion and advice of counsel; (2) counsel's advice was based on full disclosure of all the facts by defendant or the advice was initiated by counsel based on counsel's familiarity with the case; and (3) the defendant's reliance on the advice of counsel was in good faith. [Citation]" *Mock*, *supra*, 4 Cal.App.4th at 326 and fn.20, holds that a counsel's advice is neither trivial nor without arguable merit and an insurance company has a duty to thoughtfully explore a question of coverage. And in *Hillenbrand*, *supra*, 104 Cal.App.4th at 814, the Court explained that an insurer has a right to rely on

counsel, but a jury can find that the insurer did not rely on counsel's advice.

In a motion for summary judgment, inferences properly derived from the parties' evidence are viewed "in the light most favorable to the opposing party." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Here, Plaintiffs evidence and case citations support a conclusion that, here, (1) advice of counsel is not a complete defense, (2) a jury can find that an insurer did not follow their counsel's advice, in light of the evidence that Moutes-Lee recommended further EUOs to explain discrepancies in the claims.

Plaintiffs satisfy their burden to establish a triable issue of material fact.

Accordingly, CAIC's Motion for Summary Adjudication as to the Second Cause of Action is denied.

C.
Punitive Damages

CAIC seeks to summarily adjudicate the issue of punitive damages. The gravamen of CAIC's argument is CAIC's previous arguments and reliance on counsel. For the reasons discussed above, CAIC's Motion for Summary Adjudication regarding punitive damages is denied.

Conclusion

California
Automobile Insurance Company's Motion for Summary Judgment or, alternatively, for Summary Adjudication, is denied.

Date: 08/14/2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court

[1]

Plaintiffs Christine Robles and Oscar Robles share the same surname. The Court addresses each individually by their first name for the purpose of clarity.